

Court No. - 38

Case :- WRIT - C No. - 36448 of 2018

Petitioner :- Deepa Erasmus

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Himanshu Kumar, Sri Zafar M. Naiyer (Senior Advocate), Tariq Naiyer

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Abhinava Upadhyay, J.

Hon'ble Ajay Bhanot, J.

As prayed, put up this case on 14.11.2018 as fresh to enable Sri Rama Shanker Yadav, Advocate holding brief of Dr. S.K.Yadav, learned counsel appearing for the Kanpur Electricity Supply Company (KESCO) to seek instruction in the matter.

In the meantime, learned counsel appearing for the KESCO submits that the electricity connection of the petitioner will not be disconnected.

Order Date :- 1.11.2018

SKM

(Ajay Bhanot, J.) (Abhinava Upadhyay, J.)

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Hon'ble Ajay Bhanot, J.

Heard Sri Zafar Naiyar, Senior Advocate assisted by Sri Himanshu Kumar, learned counsel appearing for the petitioner and Sri S.K.Yadav, learned counsel appearing for respondents no.2 and 3. Learned Standing Counsel represents the State-respondent.

By means of this writ petition the petitioner has come up to this Court raising a grievance that being consumer of electricity a meter was intalled and inflated bills have been given to the petitioner. The petitioner had earlier moved a representation upon which the meter was changed thrice but the bills have not been corrected. The petitioner is ready to pay the bill upon actual consumption, which is not being considered by the authorities concerned.

Learned counsel for the petitioner submits that in the bill late payment surcharge has been levied inspite of objections being raised by the petitioner and the said objection remained undecided. He has drawn our attention to Clause 6.7 of the Electricity Supply Code(in short the Code), which mandates that within two months from the date of objection, the licensee, i.e. the Corporation will decide the claim, which has also remained undecided.

Sri S.K.Yadav, learned counsel appearing for the respondents-Corporation submits that the petitioner has remedy of filing a representation before the Executive Engineer as provided under Clause 6.5 of the Code and if such a representation is filed, the Executive Engineer will consider the claim of

the petitioner and pass appropriate orders.

The writ petition is disposed of with the direction that the petitioner may file a fresh representation before the Executive Engineer as provided under Clause 6.5 of the Code and the Executive Engineer will consider the claim of the petitioner and pass appropriate orders in accordance with law, as far as possible, within a period of one month from the date a certified copy of this order is presented before the authority concerned. While filing the representation the petitioner may also raise his grievance in that representation with regard to payment of surcharge of late payment of bill.

Order Date :- 14.11.2018

SKM

(Ajay Bhanot,J.) (Abhinava Upadhya,J.)